

TENTATIVE RULINGS

Date: June 18, 2026

#	Case Name	Tentative
1.	30-2025-01481463 Meredith vs. Tissera	1. Case Management Conference 2. Demurrer to Complaint The hearing on Defendant Franz Tissera’s (“Defendant”) demurrer to the Complaint is CONTINUED to July 30, 2026 at 1:30 p.m. in Department C34. In this Court’s May 12, 2026 ruling on Defendant’s motion to quash service of summons, this Court stated: As an initial matter, the Court notes that Defendant served the moving papers on plaintiff’s counsel but failed to serve Treasures MotorSports, LLC, who appeared in this action on September 24, 2025. For all future filings, Defendant is instructed to comply with his obligation to serve all parties who have appeared in this action with any filings with the Court. Defendant, once again, did not serve Treasures MotorSports, LLC with the moving or reply papers. Additionally, Defendant did not submit a meet and confer declaration as required by Code of Civil Procedure §430.41. That provision states, in relevant part: (a) Before filing a demurrer pursuant to this chapter, the demurring party <i>shall</i> meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. . . (CCP §430.41 (emphasis added).) Subsection (a)(3) further states that “the demurring party <i>shall</i> file and serve with the demurrer a declaration [concerning the meet and confer].” (CCP §430.41(a)(3) (emphasis added).) “Pro per litigants are not entitled to special exemptions from the California Rules of Court or Code of Civil Procedure.” (<i>Gamet v. Blanchard</i> (2001) 91 Cal.App.4th 1276, 1284.) Accordingly, Defendant is ordered to serve the moving and reply papers on Treasures MotorSports, LLC no later than 16 court days prior to the continued hearing date. In addition, Defendant is ordered to meet and confer with Plaintiff’s counsel. Defendant shall file a meet and confer declaration that complies with Code of Civil Procedure §430.41 no later than 9 court days prior to the continued hearing date. Clerk to give notice.

2. 30-2023-01351700 Do vs. International City Mortgage	1. Case Management Conference 2. Demurrer to Amended Complaint Defendant GenWay Home Mortgage dba Doorway Home Loan, fka International City Mortgage (“GenWay”) demurs to the Second Amended Complaint (SAC) of plaintiffs HienThu T. Do, MaiThao Thi Do, and Thong H. Do. GenWay’s unopposed <u>request for judicial notice</u> is GRANTED. (Evid. Code, § 452(d), (h).) This action arises out of a home loan previously serviced by GenWay. Plaintiffs allege that a \$30,000.00 overpayment was made in September 2013 by HienThu T. Do to GenWay but the overpayment was never applied to the principal of the loan and the maturity date remained the same. Plaintiffs further allege that GenWay failed to produce or transfer records of the payment made prior to April 2014, violating their statutory right to know their personal information, in a deliberate attempt to conceal the overpayment. They further allege that GenWay’s documents reflect false escrow overcharges where the monthly payment was increased under false pretenses and multiple “Escrow Refunds” and “Disbursement to Mortgagor” recordings that Plaintiffs never actually received. Plaintiffs seek restitution of the \$30,000.00 overpayment and subsequent fraudulent overcharges and punitive damages as a result of GenWay’s willful misrepresentations. <u>Failure to Join an Indispensable Party</u> GenWay argues the SAC fails because Plaintiffs still have not joined the current owner and/or servicer of the loan and that entity is an indispensable party. GenWay contends that complete relief cannot be accorded among the parties in the absence of the current owner and/or servicer. Plaintiffs are seeking restitution of the \$30,000.00 from GenWay. If their claim is successful, there will be no impact on the loan that is currently owned and/or being serviced by another entity. Thus, complete relief between Plaintiffs and GenWay can be accorded without joining the current owner and/or servicer. The <u>Demurrer based on failure to join an indispensable party</u> is OVERRULED. <u>Standing of HienThu T. Do</u> GenWay next argues that HienThu T. Do lacks standing because the Deed of Trust shows that only MaiThao Thi Do and Thong H. Do were borrowers on the loan. GenWay argues that HienThu T. Do is not a real party in interest. “A person who invokes the judicial process lacks standing if he, or those whom he properly represents, ‘does not have a real interest in the ultimate adjudication because [he] has neither suffered nor is about to suffer any injury of sufficient magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.’ [Citation.]” (<i>Schmier v. Supreme Court</i> (2000) 78 Cal.App.4th 703, 707.) Here, Plaintiffs allege that HienThu T. Do personally made the overpayment. Because Plaintiffs allege that it was HienThu T. Do’s funds that have been unjustly retained, they have adequately alleged damage specific to HienThu T. Do. Thus, HienThu T. Do has standing. The <u>Demurrer based on lack of HienThu T. Do’s standing</u> is OVERRULED. <u>First Cause of Action for Unjust Enrichment</u> Next, GenWay argues that the unjust enrichment cause of action fails because unjust enrichment is not a cause of action and Plaintiffs cannot allege that GenWay unjustly retained any benefit to
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